

ILANI YA FARAGHA / PRIVACY NOTICE

e-raia Kenya

1. Madhumuni na upeo

Ilani hii inaeleza jinsi Biosec Solutions Limited inavyokusanya, kutumia, kushiriki, kuhifadhi na kulinda data binafsi katika e-raia Kenya kupitia e-raia.com/ke na huduma zinazohusiana.

Inawahusu watumiaji wa Jukwaa, watu wanaohibitishwa, wageni na watu wanaowasiliana nasi. Taasisi Chanzo inaweza kuwa mdhibiti tofauti wa rekodi ya msingi.

2. Mdhibiti na mawasiliano

Biosec Solutions Limited (RC 901419) imesajiliwa Nigeria na ni mwendeshaji wa kuvuka mipaka. Kwa kawaida ni mdhibiti wa data za akaunti, malipo, usalama, msaada na usimamizi. Kulingana na mpangilio wa chanzo, inaweza kuwa mdhibiti huru, mdhibiti mwenza au mchakataji. Biosec haijasajiliwa kwa sasa kama kampuni tofauti nchini Kenya.

Biosec Solutions Limited imesajiliwa katika Jamhuri ya Shirikisho la Nigeria na inaendesha Huduma kutoka Nigeria kwa njia ya kuvuka mipaka. Jina e-raia Kenya na tovuti e-raia.com/ke ni vitambulisho vya bidhaa na biashara pekee na si kampuni tofauti iliyosajiliwa nchini Kenya.

Afisa wa Ulinzi wa Data: ke-info@e-raia.com. Maswali ya jumla: ke-info@e-raia.com. Pale sheria inapohitaji usajili wa mdhibiti wa kigeni, idhini au mwakilishi wa ndani, Biosec itakamilisha hatua hiyo na kuchapisha maelezo kwenye e-raia.com/ke.

3. Sheria na mamlaka

Tunachakata data kwa mujibu wa Data Protection Act, 2019 and applicable regulations na sheria nyingine husika. Mamlaka ya faragha ni Office of the Data Protection Commissioner of Kenya (ODPC) (odpc.go.ke).

4. Data tunayoweza kuchakata

Akaunti: jina, barua pepe, simu, kitambulisho cha kuingia, uthibitishaji, lugha, shirika na jukumu.

Uthibitishaji: kitambulisho cha utafutaji, taarifa ya Kitambulisho cha Taifa au Kadi ya Mgeni, VIN, jina, hali ya idhini na matokeo kutoka Taasisi Chanzo.

Teknolojia: anwani ya IP, kifaa, kivinjari, mfumo, eneo la kukadiria, kikao, vidakuzi, muda, hitilafu na matukio ya usalama.

Malipo: kiasi, sarafu, rejea, hali, marejesho au salio; kwa kawaida hatuhifadhi taarifa kamili za kadi.

Msaada na uzingatiji: ujumbe, malalamiko, maombi ya haki, ushahidi wa mamlaka, ishara za udanganyifu na kumbukumbu za ukaguzi.

e-raia.com/ke • ke-info@e-raia.com

Huduma zinazotolewa kwa sasa ni uthibitishaji wa Kitambulisho cha Taifa, Kadi ya Mgeni (Alien Card), na nambari ya utambulisho wa gari (VIN). Uthibitishaji wa VIN haujumuishi eLogbook au shughuli rasmi ya NTSA na utatolewa tu baada ya mamlaka ya chanzo na ruhusa ya kuwasilisha jibu lenye mipaka kwa Biosec kuthibitishwa. Biosec itasasisha Ilani hii kabla ya kuanzisha aina nyingine ya uthibitishaji.

5. Chanzo cha data

Data hutoka kwa mtumiaji au mhusika, mtu au shirika linaloanzisha ombi halali, serikali na Taasisi Chanzo, watoa malipo na mobile money, huduma za kuingia na uthibitishaji, mawasiliano, uhosting, usalama na uchanganuzi, vifaa na vivinjari, au mamlaka ya umma pale sheria inaporuhusu.

Kwa kawaida Biosec haipati rekodi za uthibitishaji kwa kuunganishwa moja kwa moja na kanzidata ya serikali. Hutuma taarifa za utafutaji zinazohitajika kwa watoa huduma wa uthibitishaji na ufikiaji wa data walio chini ya mkataba, kwa sasa wakiwemo Smile ID, Prembly IdentityPass na Mono inapohusika. Mtoa huduma anaweza kuhoji Taasisi Chanzo moja kwa moja au kupitia mshirika wa juu aliyeidhinishwa.

Mtiririko wa kawaida ni: mtumiaji au Mhusika wa Uthibitishaji hutoa taarifa kwa Biosec nchini Nigeria; Biosec hutuma sehemu zinazohitajika kwa mtoa huduma; mtoa huduma huhoji chanzo au mshirika wa juu; jibu lililopunguzwa hurudi kwa Biosec; na Biosec hulionyesha kwa mtumiaji aliyeidhinishwa kwa muda uliowekwa.

Biosec huomba ushahidi maalum wa nchi na Huduma kuhusu mamlaka ya kisheria ya mtoa huduma, chanzo, ruhusa ya kushiriki, nafasi ya mdhibiti au mchakataji, uhifadhi na msingi wa uhamisho wa kimataifa. Mtoa huduma au Taasisi Chanzo anaweza kuchakata baadhi ya taarifa kama mdhibiti huru.

6. Madhumuni na msingi wa kisheria

Tunatumia data kuunda na kusimamia akaunti, kutoa uthibitishaji, kurekodi idhini na ufikiaji, kushughulikia malipo na marejesho, kulinda Jukwaa, kuzuia udanganyifu, kutoa msaada, kuboresha huduma, kutuma mawasiliano yanayoruhusiwa na kutii sheria.

Msingi unaweza kuwa idhini, mkataba, wajibu wa kisheria, maslahi halali yasiyozidi haki za mhusika, kazi ya maslahi ya umma au msingi mwingine unaoruhusiwa.

7. Idhini na mamlaka

Pale idhini inapohitajika, lazima iwe ya hiari, maalum, yenye taarifa na wazi. Tunarekodi njia, muda na hali. Inaweza kukataliwa au kuondolewa; kuondoa hakuathiri uchakataji halali wa awali lakini kunaweza kuzuia huduma.

Mtumiaji anayeanzisha ombi lazima awe na kusudi halali na mamlaka inayohitajika.

8. Kushiriki data

Data inaweza kushirikiwa na mtumiaji aliyeidhinishwa na mhusika, Taasisi Chanzo, watoa huduma chini ya mkataba (uhosting, mawasiliano, uthibitishaji, msaada, usalama, uchanganuzi), watoa malipo, washauri wa kitaalamu, kampuni za kundi au mrithi halali wa biashara, na mamlaka pale sheria inapohitaji.

Hatuuzi wala kukodisha data binafsi na haturuhusu mtoa huduma kuitumia kwa masoko yake yasiyohusiana.

9. Uhamisho wa kimataifa

Baadhi ya mifumo au watoa huduma wanaweza kuwa nje ya Kenya. Kabla ya uhamisho tunatumia njia inayoruhusiwa na sheria, kutathmini ulinzi wa nchi na mpokeaji, na kuweka mikataba, udhibiti wa kiufundi na hatua za shirika. Idhini, usajili, taarifa au kibali cha mamlaka kitapokelewa pale kinapohitajika.

Kwa sababu Biosec inaendesha Jukwaa kutoka Nigeria, Data Binafsi inaweza kutumwa, kuhifadhiwa au kufikiwa kutoka Nigeria. Mtoa huduma au wachakataji wake wanaweza pia kuchakata taarifa katika nchi nyingine zilizotajwa katika orodha ya watoa huduma. Biosec hutumia utaratibu wa uhamisho, idhini, mikataba na ulinzi wa usalama unaotakiwa na sheria kabla ya uhamisho wenye masharti kuanzishwa.

10. Uhifadhi

Matokeo huhifadhiwa kwa muda mfupi wa ufikiaji ulioonyeshwa kisha kufutwa au kutambulishwa upya isipokuwa sheria ihitaji vingine. Akaunti, malipo, ushahidi wa idhini, kumbukumbu za usalama, malalamiko na maombi ya haki huhifadhiwa kwa muda unaolingana na kusudi, wajibu wa kisheria, ukaguzi na madai.

Muda wa uhifadhi wa Biosec unahusu nakala na kumbukumbu zinazodhibitiwa na Biosec. Mtoa huduma au Taasisi Chanzo anaweza kuhifadhi rekodi tofauti kwa wajibu wa kisheria, leseni, usalama, ukaguzi au mgogoro. Biosec huweka mipaka ya kimkataba pale mtoa huduma anapofanya kama mchakataji wake.

Data katika nakala za usalama zilizofichwa hutengwa na kubadilishwa kulingana na mzunguko wa nakala isipokuwa kuna amri ya kuhifadhi.

11. Usalama na uvunjaji wa data

Tunatumia udhibiti wa ufikiaji, uthibitishaji, usimbaji fiche unaofaa, kumbukumbu na ufuatiliaji, maendeleo salama, nakala za usalama, majibu ya tukio, ukaguzi wa watoa huduma, mafunzo na tathmini.

Tukio la data linatambuliwa, kudhibitiwa, kuchunguzwa na kuripotiwa kwa mamlaka na wahusika katika hali na muda unaotakiwa na sheria.

12. Haki zako

Kwa kuzingatia masharti ya sheria, unaweza kuomba taarifa na ufikiaji, kusahihisha, kufuta, kuzuia au kupinga uchakataji, kuondoa idhini, kupinga masoko, kubeba data inapohusika, kuomba mapitio ya kibinadamu kwa maamuzi fulani ya kiotomatiki, na kulalamika.

Marekebisho ya rekodi rasmi yanaweza kuhitaji ombi kwa Taasisi Chanzo.

13. Kutumia haki na malalamiko

Andika kwa ke-info@e-raia.com ukiweka maelezo ya kutosha. Tutathibitisha utambulisho kwa kiwango kinachofaa na kujibu ndani ya muda wa kisheria. Unaweza pia kulalamika kwa Office of the Data Protection Commissioner of Kenya (ODPC) kupitia odpc.go.ke.

14. Watoto, vidakuzi na masoko

Jukwaa si la wenye akaunti chini ya miaka 18. Mzazi au mlezi atumie akaunti yake na atoe mamlaka inayoweza kuthibitishwa pale inapohitajika.

Tunaweza kutumia vidakuzi vya lazima, mapendeleo, uchanganuzi na kipimo cha matangazo. Teknolojia zisizo za lazima hutumiwa kwa idhini pale sheria inapotaka.

Ujumbe wa masoko una njia ya kujiondoa. Hatutumii matokeo ya uthibitishaji kwa matangazo ya kitabia.

15. Uchakataji wa kiotomatiki, mabadiliko na mawasiliano

Jukwaa linaweza kulinganisha vitambulisho, kuelekeza maombi, kugundua udanganyifu na kurudisha ulinganifu kiotomatiki. Halikusudii kufanya pekee yake uamuzi wenye athari kubwa za kisheria bila taarifa na ulinzi unaohitajika.

Tunaweza kusasisha Ilani hii. Toleo na tarehe ya sasa vitachapishwa na mabadiliko makubwa yataelezwa.

Biosec Solutions Limited (RC 901419)

DPO: info@biosec.com.ng

Maswali: ke-info@e-raia.com

Jukwaa: e-raia.com/ke

ENGLISH VERSION

1. Purpose and scope

This Privacy Notice explains how Biosec Solutions Limited collects, uses, discloses, stores and protects Personal Data when operating e-raia Kenya through e-raia.com/ke and related websites, applications, APIs, communications and verification services.

It applies to Platform Users who create an Account or submit a request, Verification Subjects whose information is requested, visitors, business contacts and persons who communicate with us. A Source Institution may separately act as controller of the underlying record and should provide its own privacy information.

2. Controller and contact

Biosec Solutions Limited (RC 901419) is incorporated in Nigeria and is the cross-border operator. It ordinarily acts as controller for Account, payment, security, support and Platform-administration processing. Depending on a source arrangement, Biosec may act as an independent controller, joint controller or processor for a particular verification flow. Biosec is not presently incorporated in Kenya; the country brand is not a separate legal entity.

Data Protection Officer: ke-info@e-raia.com. General enquiries: ke-info@e-raia.com. Where applicable law requires a foreign-controller registration, authorisation or local representative, Biosec will complete the applicable step and publish the registration or representative details on e-raia.com/ke.

3. Applicable law and regulator

We process Personal Data in accordance with Data Protection Act, 2019 and applicable regulations and other applicable privacy, consumer, cybersecurity, electronic-transactions and sector-specific requirements. The relevant privacy regulator is the Office of the Data Protection Commissioner of Kenya (ODPC) (odpc.go.ke).

4. Categories of people and information

Person / activity	Information that may be processed
Platform User	Name, email, telephone number, login identifier, authentication data, language, organisation, role and account preferences.
Verification Subject	Search identifier, National ID, Alien Card or VIN-related identifier, name, consent or authentication status, and the result returned by the relevant Source Institution.
Service and device use	IP address, device, browser, operating system, approximate location, session, cookie identifiers, timestamps, pages, errors and security events.
Payments	Amount, currency, transaction reference, gateway response, payment status, refund or wallet record. Biosec ordinarily does not store full card credentials.
Support and compliance	Messages, call or ticket records, complaints, rights requests, authority documents, fraud indicators, audit records and investigation information.

Person / activity	Information that may be processed
Business or API use	Organisation details, authorised users, API keys, request logs, billing contacts and contract records.

5. Where information comes from

- directly from the Platform User or Verification Subject;
- from the person or organisation initiating a lawful request;
- from government agencies, statutory bodies and authorised Source Institutions;
- from identity, immigration, vehicle or other appropriately authorised data providers, where applicable;
- from payment gateways, banks and mobile-money providers;
- from social-login, authentication, communications, hosting, analytics, fraud-prevention and security providers;
- from devices and browser technologies; and
- from public authorities, professional advisers or another person where lawful and necessary.

Biosec generally does not obtain verification records by connecting directly to a government database. It submits the minimum required search data to contracted verification and data-access providers, currently including Smile ID, Prembly IdentityPass and Mono where applicable. A provider may query a Source Institution directly or through an authorised upstream partner.

The typical data flow is: the user or Verification Subject provides information to Biosec in Nigeria; Biosec transmits the required fields to the provider; the provider queries the relevant source or upstream partner; a limited response returns to Biosec; and Biosec displays it to the authorised user for the stated access period.

Biosec requests country- and Service-specific evidence of each provider's legal authority, source, onward-sharing permission, controller/processor role, retention and international-transfer basis. A provider or Source Institution may process some information as an independent controller, in which case its legally required privacy notice and rights process may also apply.

6. Purposes and lawful bases

Purpose	Typical lawful basis
Create and administer an Account; provide a requested Service	Performance of a contract; steps requested before a contract.
Verify identity or information and deliver a result	Consent where required; contract; legitimate interests; legal obligation; or another basis permitted by applicable law and the Source Institution.
Record consent, authority, access and audit events	Legal obligation; legitimate interests in accountability, security and dispute resolution.
Process payments, refunds and reconciliation	Contract; legal obligation; legitimate interests in fraud prevention and accounting.
Secure the Platform and investigate misuse	Legal obligation; legitimate interests in cybersecurity, fraud prevention and protection of users and Source Institutions.

Purpose	Typical lawful basis
Support, complaints and data-subject rights	Contract; legal obligation; legitimate interests in service quality and legal claims.
Analytics and service improvement	Legitimate interests, or consent where required for non-essential cookies or tracking.
Marketing	Consent or another lawful opt-out basis where permitted. Verification Results are not used for behavioural advertising.
Comply with law and protect legal rights	Legal obligation; public-interest requirement; establishment, exercise or defence of legal claims.

7. Consent and authority

Where consent is required, it must be freely given, specific, informed and unambiguous. We record the method, time and status. Consent may be refused or withdrawn through the applicable flow or by contacting the DPO. Withdrawal does not affect prior lawful processing and may prevent completion of a consent-dependent Service.

A Platform User initiating a request must have an independent lawful purpose and any required authority. Biosec may request evidence and suspend access where misuse is suspected.

8. Service-specific processing

The Services currently offered are National ID verification, Alien Card verification and vehicle identification number (VIN) verification. The data fields, source, consent or authority requirement, access period and retention differ by Service and will be described at the point of request or in a service notice. VIN verification does not include an NTSA eLogbook or official NTSA transaction and will be offered only after lawful source authority and onward-disclosure rights are confirmed. Biosec will update this Notice before introducing another verification category.

Verification information is returned only to the authorised requesting user and, where applicable, the Verification Subject. Biosec does not create or amend the underlying source record.

9. Sharing and recipients

- the requesting user and, where applicable, the Verification Subject;
- the relevant Source Institution and authorised data provider;
- cloud, hosting, communications, authentication, customer-support, analytics, cybersecurity and professional service providers acting under contract;
- payment gateways, banks, mobile-money providers and fraud-prevention services;
- group companies or a successor in a genuine restructuring, merger, investment or sale, subject to safeguards;
- lawyers, auditors, insurers and other professional advisers; and
- regulators, courts, law-enforcement bodies or public authorities where required by law or necessary to protect rights and security.

We do not sell or rent Personal Data and do not permit service providers to use it for unrelated marketing.

10. International transfers

Some infrastructure or service providers may be outside Kenya or permit authorised access from another country. We use a transfer mechanism allowed by applicable law, assess the destination and recipient, and apply contractual, technical and organisational safeguards. Where prior regulator approval, notification, adequacy, consent or another condition is required, we will satisfy it before the transfer.

Because Biosec operates the Platform from Nigeria, Personal Data submitted through the Service may be transmitted to, stored in or accessed from Nigeria. A verification provider or its sub-processors may also process information in other countries disclosed in the provider schedule. Biosec applies the transfer mechanism, approval, consent, contractual safeguards and security measures required by applicable law before a restricted transfer is activated.

Information about a material transfer and its safeguards may be requested from the DPO, subject to security and confidentiality restrictions.

11. Retention

Category	Indicative approach
Account and contract records	For the Account or contract relationship and a reasonable period afterwards for disputes, audit and legal obligations.
Payment and tax records	For the statutory accounting, tax, anti-fraud and dispute period.
Verification result	For the short access period displayed for the Service, then deleted or de-identified unless longer retention is legally required.
Consent and audit evidence	Long enough to demonstrate lawful processing, investigate misuse and resolve claims.
Security and technical logs	For a proportionate period based on risk, operational need and legal requirements.
Support, complaint and rights records	Until the matter is resolved and for the applicable legal-claims or accountability period.
Marketing preferences	Until withdrawal, plus a limited suppression record to respect the opt-out.

Exact periods are maintained in Biosec's retention schedule and may differ by Source Institution. Deletion from active systems may not immediately remove information from encrypted backups, which are isolated and overwritten through the backup cycle unless a legal hold applies.

Biosec's retention period applies to copies and logs controlled by Biosec. A verification provider or Source Institution may retain separate records for its legal, licensing, security, audit or dispute obligations. Biosec contractually limits provider retention where it acts as Biosec's processor and requests disclosure of material independent-controller retention.

12. Security

- role-based access, authentication and periodic access review;

- encryption in transit and at rest where appropriate;
- logging, monitoring, secure development and vulnerability management;
- segregation and restricted access for sensitive results;
- backup, recovery, incident response and business-continuity processes;
- vendor due diligence, contracts and confidentiality obligations; and
- staff privacy and security training, risk assessments and audits.

No electronic system is completely secure. Users must protect credentials, devices and downloaded results and report suspected compromise promptly.

13. Personal Data breaches

We maintain procedures to identify, contain, investigate and document Personal Data breaches. We notify the relevant regulator and affected persons within the time and circumstances required by applicable law. A notice may describe the nature of the breach, likely consequences, mitigation and contact point.

14. Your rights

- be informed about processing;
- request confirmation and access to Personal Data;
- request correction of inaccurate or incomplete data;
- request deletion where the legal conditions are met;
- request restriction or object to qualifying processing;
- withdraw consent;
- object to direct marketing;
- request portability where applicable;
- seek human review of qualifying solely automated decisions;
- complain to Biosec and the competent regulator; and
- seek compensation or another remedy where available.

A request to correct an official identity, Alien Card, vehicle or other source record may need to be made directly to the Source Institution. We will correct information controlled by Biosec and provide reasonable guidance.

15. Exercising rights and complaints

Email ke-info@e-raia.com with the right requested and sufficient Account or transaction details. We verify identity proportionately, ordinarily do not charge a fee, and respond within the period required by applicable law. A manifestly unfounded or excessive request may be limited, refused or charged where law permits.

You may complain to the Office of the Data Protection Commissioner of Kenya (ODPC) using its current official channel at odpc.go.ke. Please confirm current contact details on the regulator's official site.

16. Children and persons lacking capacity

The Platform is not intended for Account holders under 18. A parent, guardian or authorised adult should use their own Account. Where consent is required for a child's Personal Data, we obtain or require verifiable authority from the parent or guardian unless law provides otherwise.

17. Cookies, analytics and similar technologies

The Platform may use strictly necessary, preference, analytics and advertising-measurement cookies or similar technologies. Non-essential technologies are used only with consent where required. Choices may be changed through the cookie panel or browser settings, although disabling necessary technologies may prevent core functions.

18. Marketing

We send marketing only where permitted and provide an unsubscribe method. Opting out does not stop receipts, security alerts, consent prompts or other operational messages. We keep a limited suppression record and do not use Verification Results for behavioural advertising.

19. Automated processing

The Platform may automatically compare identifiers, validate fields, route requests, detect fraud and return match or no-match responses. Biosec does not intend to make a solely automated decision producing legal or similarly significant effects about a Verification Subject unless the Service expressly states this, identifies the lawful basis and provides required safeguards.

20. Changes to this Notice

We may update this Notice for changes in law, guidance, source arrangements, technology or processing. The current version and effective date will be published. Material changes will be highlighted or communicated where reasonably practicable.

21. Contact

Biosec Solutions Limited (RC 901419)
Data Protection Officer: info@biosec.com.ng
General enquiries: ke-info@e-raia.com
Platform: e-raia.com/ke